

STATE OF NEW YORK

4197--A

2025-2026 Regular Sessions

IN SENATE

February 3, 2025

Introduced by Sens. GOUNARDES, KRUEGER -- read twice and ordered printed, and when printed to be committed to the Committee on Ethics and Internal Governance -- recommitted to the Committee on Ethics and Internal Governance in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public officers law and the executive law, in relation to standards for ethics for certain public officers and employees

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph d of subdivision 3 of section 74 of the public
2 officers law, as amended by section 7 of part K of chapter 286 of the
3 laws of 2016, is amended to read as follows:

4 d. No officer or employee of a state agency, member of the legislature
5 or legislative employee should use or attempt to use ~~[his or her]~~ their
6 official position to secure unwarranted privileges or exemptions for
7 ~~[himself or herself]~~ themselves or others, including but not limited to,
8 the misappropriation to ~~[himself, herself]~~ themselves or to others of the
9 property, services or other resources of the state for private business
10 or other compensated non-governmental purposes, or engaging in acts of
11 unlawful discrimination, including but not limited to, making unwelcome
12 sexual advances, or requests for sexual favors, or engaging in any
13 verbal, non-verbal, or physical conduct of a sexual nature or that
14 creates a hostile, intimidating, or offensive workplace or suffering or
15 permitting others to do so in the workplace or at workplace-related
16 events.

17 § 2. Subdivision 8 of section 94 of the executive law is amended by
18 adding a new paragraph (g) to read as follows:

19 (g) In the discretion of the commission, the training developed and
20 administered in accordance with this subdivision shall not be required

EXPLANATION--Matter in italics (underscoring) is new; matter in brackets
[-] is old law to be omitted.

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1 to include or cover material that is the subject of other mandatory
2 training administered regularly to the individuals subject to the
3 provisions of this section.

4 § 3. This act shall take effect on the thirtieth day after it shall
5 have become a law.